

PuVVNL v. Pulkit Yadav — notice on CGRF average Smart Meter billing order

High Court of Judicature at Allahabad · Division Bench · 13 September 2022 · Writ-C No. 24191 of 2022 · **Notice issued; Forum order to be abided without prejudice pending the writ.**

HEADNOTE

On PuVVNL's writ alleging that the CGRF directed average Smart Meter billing from 2015 without deciding whether the 30.11.2020 bill complied with the U.P. Electricity Supply Code, 2005, the Allahabad High Court held only that the matter required consideration, issued notice to the consumer, and permitted the licensee to abide by the Forum order without prejudice. The Code was not construed.

FACTUAL SUMMARY

Purvanchal Vidyut Vitaran Nigam Limited filed a writ against a Consumer Grievance Redressal Forum order obtained by Pulkit Yadav directing electricity bills on average Smart Meter reading from 2015. The DISCOM alleged the Forum never decided whether the 30 November 2020 bill was lawful under the U.P. Electricity Supply Code, 2005, and that average-billing directions could not issue without that finding. On 25 August 2022 the matter was adjourned as advocates abstained. On 13 September 2022 a Division Bench issued notice to the consumer.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

CGRF average Smart Meter billing — notice without Code construction

HOLDING

The Division Bench treated as requiring consideration the licensee's challenge that the CGRF directed average Smart Meter billing from 2015 without deciding whether the 30 November 2020 bill was lawful under the U.P. Electricity Supply Code, 2005; issued notice to the consumer; and permitted the licensee to abide by the Forum order in the meantime without prejudice to realizing the bill depending on the writ. No provision of the Code was construed. ¶ 2

PRINCIPLE TAGS

procedural-listing-no-construction

Notice and a without-prejudice interim to abide the CGRF order; the alleged Supply Code defect in the 30.11.2020 bill and the average-billing direction were left for later consideration. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL DATED 30.11.2020 WAS LAWFUL OR IN VIOLATION OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The issue the licensee said the CGRF failed to address; the writ was listed for consideration. ¶ 2

NOT DECIDED — WHETHER THE CGRF COULD DIRECT BILLING ON AVERAGE SMART METER READING FROM 2015 WITHOUT DECIDING THE CORRECTNESS OF THAT BILL

¶ 2